

2	Jefferson Capital Systems, LLC vs. Son 30-2025-01496753-CU-CL-CJC	Motion to Set Aside Dismissal The motion of plaintiff Jefferson Capital Systems, LLC to set aside dismissal is GRANTED. OSC re dismissal (default judgment) is scheduled for 9/24/2026 at 1:30 PM. Plaintiff is ORDERED to request entry of default and submit a default prove-up package to the court before the hearing. If plaintiff fails to do so, the court will again dismiss the action unless plaintiff appears and shows good cause otherwise. (See Cal. Rules of court, rule 3.110(b); Local Rule 381.) Plaintiff shall file and serve a status report no later than 5 court days before the hearing. <i>Failure to comply may subject the parties and/or counsel to sanctions pursuant to Code of Civil Procedure section 177.5.</i> Clerk to give notice.
3	Star vs. TopRank Motorworks Inc. 30-2024-01434530-CU-BC-CJC	Motion for Judgment on the Pleadings Off calendar – withdrawn at request of moving party.
4	DI Overnite Investments, LLC vs. Martin 30-2024-01410563-CU-BT-CJC	Motion for Terminating Sanctions and Monetary Sanctions for Failure to Obey Court Orders Defendants Michael Martin; Philip Nabal; and Express Overnite, LLC’s unopposed motion for terminating sanctions is GRANTED. Defendants’ request for additional monetary sanctions is DENIED. Defendants’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) Plaintiffs were ordered in May 2025 to provide further responses and verifications, and to produce responsive documents to Defendants’ requests for production. Additionally, the Court imposed monetary sanctions on Plaintiffs. Plaintiffs paid the monetary sanctions, however, never complied with the ordered discovery in over a

		year's time. After considering the totality of the circumstances, the Court finds Plaintiffs' conduct to be willful, preceded by a history of abuse, and it has caused Defendants prejudice. Less severe sanctions have not produced compliance. Additionally, Plaintiffs did not attempt to comply with their discovery obligations after the motion was filed. Nor did Plaintiffs bother to oppose the motion. "[S]anctions may not be imposed solely to punish the offending party." (<i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 75.) Imposing additional monetary sanctions would solely punish Plaintiffs and would not be for the purpose of compelling compliance. The case is DISMISSED. (Code Civ. Proc., § 2023.030, subd. (d)(3).) Clerk to give notice.
5	Malakoutian vs. Ruiz 30-2026- 01578846-CU- PT-CJC	Order to Show Cause re: Preliminary Injunction Plaintiffs' Teyebah Malakoutian, Demetric Willoughby, and Robin Jones motion for a preliminary injunction is CONTINUED to 10/2/2026. Plaintiffs submitted substantial additional evidence which includes 5 additional declarations and over 100 pages of exhibits in support of their Reply. "The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers." (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 (<i>Jay</i>).) "Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (<i>American Drug Stores, Inc. v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453.) "[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case. . . ' and if permitted, the other party should be given the opportunity to respond." (<i>Jay, supra</i>, 218 Cal.App.4th at p. 1538.) In lieu of disregarding the additional evidence submitted with the Reply, the Court will continue the hearing and allow Defendants to respond to the additional declarations filed with the Reply. Defendants may file a supplemental